APPEAL DATED 15.08.2023 BEFORE THE HON"BLE CENTRAL INFORMATION COMMISSIONER FOR INFORMATION

From: JADAB KUMAR PAL (jadabpal@yahoo.co.in)

To: fdesk-cic@gov.in

Cc: ds-coorpari@mospi.gov.in; us-vigilance@mospi.gov.in; ceaf@isical.ac.in; g.durgam@gmail.com

Bcc: dceb.accounts@isical.ac.in; sandipisi@gmail.com; dceest@isical.ac.in; dceb@isical.ac.in; ceaf.isi@gmail.com

Date: Tuesday, 15 August, 2023, 11:33 am IST

To
The Hon'ble Chief Information Commissioner
CIC Bhawan, Baba Gangnath Marg
Munirka, New Delhi - 110067

15th August 2023

Sir,

Kindly see the attached RTI Appeal before the Hon'ble Information Commissioner for access to information.
This is required for proof of service of appeal before the FAA, MoSPI, FAA, ISI, CPIO, MoSPI and CPIO, ISI.
The Original RTI Appeal will be sent before the Hon'ble CIC attaching this proof with other relevant documents.

Jai Hind,

Regards,
--Jadab Kumar Pal

CC:

1. Shri Sanjay Kumar, US & CPIO(Vig.), MoSPI
2. Ms. Sunita Bansal, DS & FAA, MoSPI
3. Shri Durgam Giri, CPIO & Sr. A. O., ISI Kokkara
4.Shri Ravinder Kumar, Chief Executive (A&F) & FAA, ISI Kolkata

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Deputy Chief Executive (A) GA
Indian Statistical Institute
203 B T Road, Kolkata - 700108
website: http://www.isical.ac.in

Member, Advisory Board, Dept of Law, Brainware University, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB

Contact: +91-9432489098

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CIC_APPEAL 15.08.2023.pdf
1.7MB

भारतीय सांख्यिकीय संस्थान
INDIAN STATISTICAL INSTITUTE

श्री रविन्द्र कुमार
Shri Ravinder Kumar
मुख्य कार्यपालक (प्रशासन एवं वित्त)
और प्रथम अपीलीय प्राधिकारी
Chief Executive (Admn. & Finance)
& First Appellate Authority

203, बैरकपुर ट्रंक रोड /BARRACKPORE TRUNK ROAD
कोलकाता / KOLKATA -700108, भारत / INDIA
दूरभाष/TELEPHONE : (033) 2575 2251
फैक्स / FAX : + (91) (33) 2577 6033
ई-मेल / e-mail : ceaf@isical.ac.in

No. CAF/21-A/23-24/72
15th June, 2023.

Dr. Jadab Kumar Pal
98, Desh Bandhu Road (East)
Kolkata – 700035.

Dear Sir,

Please refer to your RTI application vide Registration No. MOSPI/R/E/23/00266 dated 30th March, 2023, information furnished by CPIO on vide letter No. RTI/21-A/530 25th April 2023 and your first appeal vide Regn. No MOSPI/A/E/23/00046 dated 19th May, 2023 on this issue.

I have perused the above RTI application, reply furnished by the CPIO and I agree with the CPIO, as there is no public interest involved.

Your RTI appeal is therefore disposed of.

Thanking you,

Yours sincerely,

15.06.23

Chief Executive (Admn. & Finance)
& First Appellate Authority

Jadab Kumar Pal, *M.Sc., Ph.D. (IIT Kharagpur),*

Member, Advisory Board, Dept. of Law, Brainware University, WB
Honorary Professor, MAB Institute of Juridical Science, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB
Former Lecturer-in-Law, Dhubri Law College, Assam
Former Junior Scientist, Pollution Control Board, WB
Former Assistant Registrar, IIT Kharagpur, WB
Shunned West Bengal Civil Services (Judicial)

98 Desh Bandhu Road (East)
Kolkata – 700035

… Appellant

Date: 18/05/2023

To

1. Ms. Sunita Bansal
   Deputy Secretary and FAA
   MoSPI, Govt. of India
   Room No.302, K L Bhawan
   Janpath, New Delhi – 110001

2. Mr. Ravinder Kumar
   Chief Executive (A&F) and FAA
   Indian Statistical Institute
   203 B T Road, Kolkata – 700108

Sub: Appeal under section 19(1) of the RTI Act 2005

The humble appeal of the above named appellant most respectfully sheweth that

1. That the appellant sought information under RTI Act from the CPIO, MoSPI, vide application dated 30th March 2023, copy attached herewith.
2. That the Senior Administrative Officer & CPIO of Indian Statistical Institute (ISI) and the Under Secretary & CPIO (Vigilance) of MoSPI has disposed the said application but the appellant is not satisfied with the reply of both the CPIOs. The copies of the reply are attached herewith.
3. That the CPIOs are unable to appreciate the larger public interest which out weight the section 8 (1) of the RTI Act because of the following facts:

(i) The is required for research and academic purpose for writing scientific paper on "Nepotism favoritism and corruption in education system: Indian perspective" in international journal.

(ii) The above mentioned international research paper shall contribute to the whole world helping to shape academic administration in this planet. The paper is in the final stage and the abstract of the research paper may be shared if necessary.

4. Perhaps both the CPIOs have looked at the sunny exemption clause of the RTI Act through the fogged window without applying their mind as a result the contention of the CPIO, MoSPI is not tenable. This claim is supported by the following:

(i) As per Para 2 (iii) 0f OM No. 021-AIS -1(2), dated 19th April 2021, issued by the CVC and available in the public domain, a copy of the complaint shall be made available to the concerned employee whenever name of the employee is mentioned in the complaint, as the undersigned appellant being the concerned employee it ought to have manifestly be seen to be shared with the appellant.

(ii) As there is violation of *audi alteram partem, the* universal principle of natural justice while seeking comments on complaint without sharing the copy of the complaint.

(iii) As the decision of the CIC, vide File No. CIC/CVCOM/A/2017/175169/SD, dated 21 May 2019, specifically mandated to provide available information sought in the RTI application to the appellant free of costs.

(iv) As it is mere ignorance of the high handed CPIOs to deny such a copy of the complaint while wrongly invoking section 8 (1) (e) of the RTI Act under the cover of confidentiality and fiduciary relationship.

5. Moreover, the contention of the CPIO, ISI, is not tenable to provide the numbers of professors who have obtained 3rd division in Madhyamik Pariksha (Secondary Examination) and who have been recruited after implementation of the IISC pay scales. Because the number of Professors cannot be protected by the fiduciary relationship which has no correlation with the name of the Professor. The information should be shared due of the following facts:

(i) Because the certificate of our Hon'ble Prime Minister for passing Master's Degree is available in the public domain to maintain transparency, probity and to foil the vicious intention of those who are opposing, likewise the certificate of Professors who have obtained 3rd division in Madhyamik Pariksha and appointed after implementation of the IISC pay scales should be available in the public domain.

(ii) Because it is also incumbent upon the CPIOs to justify the existence of the fiduciary relationship with the natural justice of the victim appellant to restore the regime of transparency and probity in the official matters.

(iii) Because the contention of the fiduciary relationship as invoked by the CPIOs under section 8(1) (e) of the RTI Act is not comprehensible as the CBI does not hold fiduciary relationship with the institution on whose behalf it holds investigation, vide page No.87 of G B Singh's Hand Book on RTI Act 2005 (July, 2012 Edition).

6. Being aggrieved by the decision of the CPIOs the appellant most respectfully prays before you to kindly provide the information at serial no. 1, 2 and 3 of the RTI application dated 30/03/2023 as reproduced below:

(i) A CVC complaint was made against "Jadav Pal" in the year 2020. Comments and views sought by the PTVO, ISI, without providing the copy of the complaint in contravention of CVC Order. Recently the PTVO of ISI Kolkata has informed that he has yet to receive the complaint directly from the complainant and advised to contact right offices, vide his e-mail of dated 27th January 2023, copy attached for ready reference. Hence, I request you to kindly provide me the copy of the complaint against "Jadav Pal" with the name, address and contact number.

(ii) The number of Professors who have secured third division in Madhyamik Pariksha (Secondary Examination) Class X and are recruited/ appointed/ engaged and/or promoted to the Professor after the implementation of the IISC pay scales in ISI HQs.

(iii) Whether Mr. Pabitra Banik, Professor & Part-time Vigilance Officer of ISI has secured third division in Madhyamik Pariksha (Secondary Examination) Class-X.

And for this act of your kindness the appellant shall be ever grateful to you.

Signature of the Appellant

Jadab Kumar Pal, *Unethical Decision Making in Organizations (University of Lausanne), Innovation and IT management (IIM Bangalore), Introduction to Bioethics (Georgetown University), Forensic Accounting and Fraud Examination (West Virginia University), Fundamentals of Project Planning and Management (Virginia University), Business Writing (University of Colorado), Write Professional Emails in English (Georgia Institute of Technology), Introduction to Philosophy (The University of Edinburgh), Usable Security (University of Maryland), Effective Problem-Solving and Decision Making (University of California), English Common Law: Structure and Principles (University of London), Microeconomics Principles (University of Illinois), Journalism Skills for Engaged Citizens (The University of Melbourne), International Leadership and Organizational Behavior (Universita Bocconi), International Organizations Management (University of Geneva), America's Unwritten Constitution (Yale University), Constitutional Reforms in Russia (Saint Petersburg State University),*

Member, Advisory Board, Dept. of Law, Brainware University, WB
Honorary Professor, MAB Institute of Juridical Science, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB
Former Lecturer-in-Law, Dhubri Law College, Assam
Former Junior Scientist, Pollution Control Board, WB
Former Assistant Registrar, IIT Kharagpur, WB
Shunned West Bengal Civil Services (Judicial)

98 Desh Bandhu Road (East)
Kolkata – 700035

Date: 30/03/2023

To
The CPIO
MoSPI, Govt. of India

Sub: Seeking information under RTI Act 2005.

Sir,
I'm a citizen of India requiring some important information under the RTI in larger public interest. Kindly provide me the following information.

1. A CVC complaint was made against "Jadav Pal" in the year 2020. Comments and views sought by the PTVO, ISI, without providing the copy of the complaint in contravention of CVC Order. Recently the PTVO of ISI Kolkata has informed that he has yet to receive the complaint directly from the complainant and advised to contact right offices, vide his e-mail of dated 27th January 2023, copy attached for ready reference. Hence, I request you to kindly provide me the copy of the complaint against "Jadav Pal" with the name, address and contact number.

2. The number of Professors who have secured third division in Madhyamik Pariksha (Secondary Examination) Class X) and are recruited/ appointed/ engaged and/or promoted to the Professor after the implementation of the IISC pay scales in ISI HQs.

3. Whether Mr. Pabitra Banik, Professor & Part-time Vigilance Officer of ISI has secured third division in Madhyamik Pariksha (Secondary Examination) Class-X.

4. Whether Shri Swarup Ghara (Roll No.9077), working as Office Assistant-C, in ISI Kolkata has given MACP on the basis of Referee Report instead of CR or APAR in contravention of Office Order.

5. Whether AAdhar Enabled Bio-metric attendance has been introduced in MoSPI and ISI HQs. If not, please share official note rejecting the proposal for Bio-metric attendance.

I would be grateful if you kindly provide the information at the earliest.

Best regards,



(Jadab Kumar Pal)

Re: Request to inform status of my all vigilance cases

From: pbanik (pbanik@isical.ac.in)

To: jadabpal@yahoo.co.in

Cc: tq.mohammad@gov.in

Date: Friday, 27 January, 2023, 12:00 pm IST

On 2023-01-25 05:34, JADAB KUMAR PAL wrote:

> Hi Mr. Banik,
>
> PFA.
>
> Happy Republic Day in advance,
>
> Best regards,
>
> Jai Hind,
>
> --Dy CE (A) GA
> _____
> This e-mail may contain confidential, privileged, or protected
> information. If the addressee is not the intended recipient of this
> e-mail, please delete it and notify the sender that it is received in
> error, and do not distribute, or disclose any information herein in
> any manner. This e-mail and its attachment(s) are believed free from
> virus or other defect, but it is the responsibility of the recipient
> to ensure that it free from virus and the sender of this e-mail would
> not be liable in any way for any loss or damage or use thereof. All
> legal disputes are subject to jurisdiction of High Court at Calcutta.

Dear Sir,
In reference to your communication for information status of vigilance cases related to you, please be informed that the office of the Vigilance Officer at ISI has only an investigative role and has no correlation with the outcome of the cases, which are decided by the office of the CVO/MoSPI and/or CVC.

Also, my office has yet to receive the complaint directly from the complainant. Therefore, I am the custodian of the complaint.
So, you'll need to contact the right offices to know the status of the cases you may be concerned about.

Thanking you,
Regards,
Pabitra Banik, PTVO, ISI

INDIAN STATISTICAL INSTITUTE

203 BARRACKPORE TRUNK ROAD
KOLKATA 700 108, INDIA

Fax : +(91)(33) 2577 6033
E-mail : g.durgam@gmail.com

No. RTI/21-A/530
25th April, 2023

Jadab Kumar Pal
98 Desh Bandhu Road (East)
Kolkata-700035

Sub. : Your RTI application, vide Registration No.MOSPI/R/E/23/00266, dated 30/03/2023.

This refers to your RTI application, vide Registration No. MOSPI/R/E/23/00266, dated 30/03/2023, the information sought, after being received from the concerned department and CPIO (faculty matters), is furnished below:

Sl. No.	Information sought	Information supplied
1.	A CVC complaint was made against "Jadav Pal" in the year 2020. Comments and views sought by the PTVO, ISI, without providing the copy of the complaint in contravention of CVC order. Recently the PTVO of ISI Kolkata has informed that he has yet to receive the complaint directly from the complainant and advised to contact right offices, vide his email of dated 27th January 2023, copy attached for ready reference. Hence, I request you to kindly provide me the copy of the complaint against "'Jadav Pal" with the name, address and contact number.	Request tranferred to Under Secretary (Vigilance), MoSPI for providing the reply.
2.	The number of Professors who have secured third division in Madhyamik Pariksha (Secondary Examination) Class X) and are recruited/appointed/engaged and /or promoted to the Professor after the implementation of the IISC pay scale in ISI HQ.	As informed by the CPIO (faculty matters), the details of qualifications of the employees are held by the Insistute in fiduciary relationship with the employee concerned and its disclosure does not warrant large public interest. Therefore, the information sought cannot be disclosed as per section 8 (1) (e) of the RTI Act, 2005.
3.	Whether Mr. Pabitra Banik, Professor & Part-time Vigilance Officer of ISI has secured third division in Madhyamik Pariksha (Secondary Examination) Class-X.	
4.	Whether Shri Swarup Ghara (Roll No. 9077), working as Office Assistant-C, in ISI Kolkata has given MACP on the basis of Referee Report instead of CR or APAR in contravention to Office Order.	No MACP was granted to the concerned employee.
5.	Whether Aadhar Enabled Bio-metric attendance has been introduced in MoSPI and ISI HQ. If not,	(i) Request transferred to Under Secretary (Ad. I & Ad. V), MoSPI for

	please share official note rejecting the proposal for Bio-metric attendance.		providing the reply on Bio-metric attendance in MoSPI.
		(ii)	In respect to ISI, as per the records made available from the C.E. office, it has been seen that on 24th November, 2014 a letter for implementation of Bio-metric attendance in all Government offices was forwarded by the Nodal Ministry. However, on the same day it was taken back vide email dated 24th November, 2014.

Your RTI application, vide Registration No. MOSPI/R/E/23/00266, dated 30/03/2023 is disposed of. The First Appeal, if any, against the reply of the CPIO may be made to the First Appellate Authority within 30 days from the receipt of reply from the CPIO. The name and address of The First Appellate Authority is given below:

Ravinder Kumar
Chief Executive (A&F) & FAA of the Institute
203, B.T. Road, Kolkata – 700 108
Phone: +91 33 2575-2251
e-mail: ceaf@isical.ac.in

Yours sincerely,

(Durgam Giri)
Senior Administrative Officer & CPIO

C-11011/13/2022-Vig.

I/44984/2023

CONFIDENTIAL
BY SPEED POST

Government of India
Ministry of Statistics and Programme Implementation
Vigilance Section

K.L. Bhawan, Janpath,
New Delhi, Dated April, 2023

To,

Shri Jadab Kumar Pal,
98, Desh Bandhu Road (East),
Kolkata-700035

Subject: RTI application under RTI Act, 2005- supply of information reg.

Sir,

Please refer to your RTI Application with Registration No. MOSPI/R/E/23/00266/2 dated 30.03.2023, received on 10.04.2023 on transfer from CPIO Dy. Chief Executive (ISI) to CPIO US (Vigilance).

2. Information sought at S.No. 1 of the RTI application pertains to Vigilance Section, MoSPI. In this context, it is informed that the requested information is related to a case which has been treated by CVC as CONFIDENTIAL and the same is available with this Ministry in fiduciary relationship. Moreover, no larger public interest is evident in disclosure of the said information. Therefore, the requested information is exempted from disclosure under Section 8(1)(e) of the RTI Act, 2005.

3. In this regard, the appellate authority to whom an appeal can be preferred under Section 19(1) of the RTI Act, 2005 within a period of 30 days of receipt of this information is:

Ms. Sunita Bansal,

Deputy Secretary & First Appellate Authority,

Room No. 302, K.L. Bhawan,

Janpath, New Delhi-110001

Yours faithfully,

(Sanjay Kumar)
Under Secretary and
Central Public Information Officer (Vigilance)
Ph-011-23455342

Signed by Sanjay Kumar
Date: 04-05-2023 12:46:17
Reason: Approved

IMMEDIATE
RTI MATTER

File No.संख्या A – 37012/02/2023-Admin.I
भारत सरकार/Government of India
सांख्यिकी और कार्यक्रम कार्यान्वयन मंत्रालय
Ministry of Statistics and Programme Implementation

खुर्शीद लाल भवन /**Khurshid Lal Bhawan,**
जनपथ , **नई दिल्ली/ Janpath, New Delhi,**
दिनांक/Dated: 01.05.2023

To,

Shri Jadab Kumar Pal,
98 Desh Bandhu Road (East),
Kolkata - 700035,
Pin:700035

Subject- **RTI Application Number MOSPI/R/E/23/00266/1 dated 30.03.2023 of Shri Jadab Kumar Pal –reg.**

Sir,

Please refer to your RTI Application Number MOSPI/R/E/23/00266/1 dated 30.03.2023, forwarded by CPIO (ISI), MoSPI to CPIO (Admin.I) MoSPI on 10.04.2023.

2. Insofar as Admin.I Section, MoSPI is concerned, the information is as under:

Information sought	Reply
Whether Aadhar Enabled Bio-metric attendance has been introduced in MoSPI. If not please share official note rejecting the proposal for Bio-metric attendance.	Admin.I Section deals with administrative matters of MoSPI (proper) where Aadhar based Bio-metric attendance is in place since 2014.

(Ranjeet Kumar Sudhanshu)
Under Secretary to the Govt.of India & CPIO (Admin.I)

Jadab Kumar Pal, *Unethical Decision Making in Organizations (University of Lausanne), Innovation and IT management (IIM Bangalore), Introduction to Bioethics (Georgetown University), Forensic Accounting and Fraud Examination (West Virginia University), Fundamentals of Project Planning and Management (Virginia University), Business Writing (University of Colorado), Write Professional Emails in English (Georgia Institute of Technology), Introduction to Philosophy (The University of Edinburgh), Usable Security (University of Maryland), Effective Problem-Solving and Decision Making (University of California), English Common Law: Structure and Principles (University of London), Microeconomics Principles (University of Illinois), Journalism Skills for Engaged Citizens (The University of Melbourne), International Leadership and Organizational Behavior (Universita Bocconi), International Organizations Management (University of Geneva), America's Unwritten Constitution (Yale University), Constitutional Reforms in Russia (Saint Petersburg State University),*

Member, Advisory Board, Dept. of Law, Brainware University, WB
Honorary Professor, MAB Institute of Juridical Science, WB
Former Teacher-in-Charge, Jalpaiguri Law College, WB
Former Lecturer-in-Law, Dhubri Law College, Assam
Former Junior Scientist, Pollution Control Board, WB
Former Assistant Registrar, IIT Kharagpur, WB
Shunned West Bengal Civil Services (Judicial)

98 Desh Bandhu Road (East)
Kolkata – 700035

Date: 30/03/2023

To
The CPIO
MoSPI, Govt. of India

Sub: Seeking information under RTI Act 2005.

Sir,
I'm a citizen of India requiring some important information under the RTI in larger public interest. Kindly provide me the following information.

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5. Whether AAdhar Enabled Bio-metric attendance has been introduced in MoSPI and ISI HQs. If not, please share official note rejecting the proposal for Bio-metric attendance.

I would be grateful if you kindly provide the information at the earliest.

Best regards,



(Jadab Kumar Pal)

Re: Request to inform status of my all vigilance cases

From: pbanik (pbanik@isical.ac.in)

To: jadabpal@yahoo.co.in

Cc: tq.mohammad@gov.in

Date: Friday, 27 January, 2023, 12:00 pm IST

On 2023-01-25 05:34, JADAB KUMAR PAL wrote:

> Hi Mr. Banik,
>
> PFA.
>
> Happy Republic Day in advance,
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> Best regards,
>
> Jai Hind,
>
> --Dy CE (A) GA
> _____
> This e-mail may contain confidential, privileged, or protected
> information. If the addressee is not the intended recipient of this
> e-mail, please delete it and notify the sender that it is received in
> error, and do not distribute, or disclose any information herein in
> any manner. This e-mail and its attachment(s) are believed free from
> virus or other defect, but it is the responsibility of the recipient
> to ensure that it free from virus and the sender of this e-mail would
> not be liable in any way for any loss or damage or use thereof. All
> legal disputes are subject to jurisdiction of High Court at Calcutta.

Dear Sir,
In reference to your communication for information status of vigilance cases related to you, please be informed that the office of the Vigilance Officer at ISI has only an investigative role and has no correlation with the outcome of the cases, which are decided by the office of the CVO/MoSPI and/or CVC.

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So, you'll need to contact the right offices to know the status of the cases you may be concerned about.

Thanking you,
Regards,
Pabitra Banik, PTVO, ISI